TERMS AND CONDITIONS GOVERNING THE M-PESA SHIRIKI SERVICE.

1. AGREEMENT

1.1. These terms and conditions (the "**Terms and Conditions**") constitute an agreement between Safaricom Plc of P.O. Box 66827 Westlands, Nairobi – 00800 and the customers of the M-PESA Shiriki Service (**the "Customers"**) and contain the complete terms and conditions that apply to the M-PESA Shiriki Service.

1.2. These Terms and Conditions should be read together with the M-PESA Customer Terms & Conditions entered into between the Customer and Safaricom Plc. In case of any inconsistency or contradiction between these Terms and Conditions and any other terms and conditions with respect to the M-PESA Shiriki Service, these Terms and Conditions shall prevail.

1.3. These Terms and Conditions shall take effect on the date of publication ("**Effective Date**") and shall apply to you upon registering for or opting into the M-PESA Shiriki Service.

1.4. By accepting these Terms and Conditions and participating in or continuing to use the M-PESA Shiriki Service, you shall be deemed to be making an affirmative statement of your acceptance of these Terms and Conditions.

2. DEFINITIONS AND INTERPRETATION

2.1. In these Terms and Conditions, unless the context otherwise requires, the following words and expressions shall have the following meanings:

"**Account Holder**" means an M-PESA Customer who, by opting into the Shiriki Service, authorizes the Authorized User to initiate eligible transactions from the Account Holder's M-PESA Account within agreed limits under the Shiriki Service.

"Authorized User" means a person, being a registered M-PESA Customer, authorized by the Account Holder to initiate eligible transactions from the Account Holder's M-PESA Account within agreed limits under the Shiriki Service.

"Eligible Transactions" means the M-PESA transactions that may be initiated and effected by the Authorized User under the Shiriki Services pursuant to these Terms and Conditions, which for the avoidance of doubt shall include the following:

(a) Payment to a Lipa na M-PESA Merchant (both Buy Goods and Paybill);

(b) Payment to a Pochi la Biashara Merchant;

(c) Any other transaction types as Safaricom may permit from time to time.

"Intellectual Property Rights" means copyright, moral rights, trademark, patent, and other intellectual and property rights, title and interests worldwide, whether vested, contingent, or future, including without limitation all economic rights and all exclusive rights to reproduce, fix, adapt, modify, translate, create derivative works from, extract or re-utilize data from, manufacture, introduce into circulation, publish, distribute, sell, license, sub license, transfer, rent, lease, transmit or provide access electronically, broadcast, display, enter into computer memory, or otherwise use any portion or copy, in whole or in part, in any form, directly or indirectly, or to authorize or assign others to do so.

"M-PESA Account" means the account belonging to the Customer created in the M-PESA System;

"M-PESA App" means a mobile application owned and operated by us that enables M-PESA Customers

to access the M-PESA Service and Safaricom-related consumer financial services including payments, banking, insurance, wealth management and several financial value-added services as well as customer support services through one central location.

"M-PESA Customer" or **"Customer"** means a Safaricom customer who has registered for the MPESA Service.

"M-PESA Services" or **"M-PESA"** means the money transfer and payment service provided by Safaricom.

"M-PESA System" or **"M-PESA"** means the system operated by Safaricom providing the M-PESA Services.

"Personal Information" means personal identifiable information as prescribed in the Data Protection Act, 2019.

"PIN" means the personal identification number that uniquely identifies a customer for purposes of use of a Safaricom service.

"**Safaricom"** means Safaricom PLC of P.O. Box 66827 Westlands, Nairobi – 00800 and any business or other person to whom any or all of our rights and or responsibilities under these Terms and Conditions may be transferred or assigned.

"**We" or "us" or "our"** means Safaricom PLC and (where applicable) our affiliates.

"You" (or "you") or the "Customer", and "Your" (or "your") or **the "Customer's"** means the person or customer who signs up for the M-PESA Shiriki.

2.2. In this Agreement (including the recitals), unless the context otherwise requires:

2.2.1. Capitalized terms which are used in these Terms and Conditions and which have not been defined herein shall have the meaning ascribed to them in the M-PESA Customer terms and conditions.

2.2.2. Words denoting the singular shall include the plural and vice versa and reference to the masculine gender shall include a reference to the feminine gender and neuter and vice versa;

2.2.3. References to clauses are references to the clauses of this Agreement;

2.2.4. References to "Parties" shall mean the parties to this Agreement being Safaricom and the Client and to "Party" shall mean either of them as the context may indicate;

2.2.5. The expression "person" includes a natural person, body corporate, unincorporated venture, trust, joint venture, association, statutory corporation, state, state agency, governmental authority or firm; and

2.2.6. Headings to clauses are used for convenience only and shall not affect the construction and interpretation of this Agreement.

3. SCOPE OF THE SERVICE

3.1. M-PESA Shiriki (the "Service(s)") is a service that allows an M-PESA Customer (the "**Account Holder**") to designate and authorize another M-PESA Customer (the "**Authorized User**") to utilize funds from the Account Holder's M-PESA Account subject to a limit prescribed by the Account Holder at the time of adding the Authorized User.

3.2. To participate in the Service, the Account Holder and the Authorized User must be registered M-PESA Customers and must accept these Terms and Conditions.

3.3. You may access the Service using the M-PESA App or such other application as may be designated by Safaricom from time to time

3.4. Upon entering the details of the Authorized User, you will be furnished with the details of the Authorized User for you to verify and confirm before proceeding with the authorization. You are responsible for confirming the details of the Authorized User.

3.5. You will authorize the addition of an Authorized User using your M-PESA PIN which shall be confidential to you and shall not under any circumstance be disclosed to any other person.

3.6. By opting into the Service and adding/designating an Authorized User, the Account Holder unequivocally and irrevocably authorizes the Authorized User to access and perform the following actions on their M-PESA Account during the period when the Authorized User remains listed under the Account Holder's Account:

3.6.1. initiate and approve Eligible Transactions from the Account Holder's M-PESA Account subject to the maximum amount set by the Account Holder;

3.6.2. View the transaction history showing the Authorized User's use of the funds assigned; and

3.6.3. Receive notifications related to the Account Holder's M-PESA Account in so far as the notifications relate to transactions effected by the Authorized User from the Account Holder's Account.

3.7. By opting into the Service and adding/designating an Authorized User, the Account Holder authorizes Safaricom to debit their M-PESA Account upon the Authorized User authenticating an Eligible Transaction.

3.8. The Account Holder hereby accepts full responsibility for all actions performed by the Authorized User within the granted permissions.

3.9. Transactions effected by the Authorized User will appear ONLY on the Account Holder's M-PESA statement. In addition, the M-PESA statement of the recipient of any payment made by the Authorized User will reflect the Account Holder's information since the payment would be made from that account and not the Authorized User's Account.

4. DESIGNATION OF AUTHORIZED USERS

4.1. It is the sole responsibility of the Account Holder to provide accurate, complete, and up-to-date information regarding any person they authorize to access or use their M-PESA Account ("Authorized User"). The information to be provided includes, but is not limited to, the Authorized User's MSISDN, full name, contact details, and any identification or verification documents that we may require, at our sole discretion.

4.2. Safaricom shall not be liable for any loss, damage, unauthorized transaction, or other consequence arising directly or indirectly from:

4.2.1. The Account Holder's failure to furnish correct or current information about an Authorized User;

4.2.2. Any misrepresentation, inaccuracy, or omission in the details provided;

4.2.3. Actions taken by an Authorized User acting pursuant to the access granted by the Account Holder.

4.3. The Account Holder agrees to indemnify and hold harmless Safaricom, its affiliates, directors, and employees from any claims, liabilities, or losses resulting from the use or misuse of their M-PESA Account, access by an Authorized User, whether due to the Account Holder's error or negligence.

4.4. The Account Holder may revoke an Authorized User's authorization at any time through the Access Channels provided that such revocation shall not affect any actions taken by the Authorized User prior to the revocation taking effect.

5. THE AUTHORIZED USER

5.1. The Authorized User acknowledges and agrees that by being granted access to the Account Holder's M-PESA Account subject to these Terms and Conditions, the Authorized User shall:

5.1.1. Use the funds from the Account Holder's M-PESA Account solely for lawful purposes and in good faith;

5.1.2. Comply with all applicable laws, regulations, and guidelines; and

5.1.3. Refrain from engaging in any activity that may be construed as fraudulent, deceptive, abusive, or in violation of these Terms and Conditions.

5.2. The Authorized User shall act strictly within the scope of authorization and limits granted by the Account Holder.

5.3. Account Holder acknowledges that Safaricom shall be under no obligation to restrict or prevent transactions made by an Authorized User unless and until their access is formally revoked through the designated process.

5.4. The Authorized User shall:

5.4.1. Keep all login credentials, passwords, PINs, authentication devices, and access tools secure and confidential;

5.4.2. Immediately notify Safaricom and/or the Account Holder in the event of unauthorized access, loss of credentials, suspected security breaches, or misuse of account access;

5.4.3. Avoid using shared, public, or insecure devices or networks to access the platform in ways that may compromise security.

5.5. Access rights are granted solely to the individual designated as the Authorized User. The Authorized User shall not share, delegate, sell, transfer, or otherwise permit any third party to use their access to the M-PESA Account.

5.6. The Authorized User agrees to regularly review transactions performed under their access and promptly report any errors, disputes, or unauthorized activities to both Safaricom and the Account Holder.

5.7. The Authorized User acknowledges that the Account Holder shall have full visibility of transactions undertaken in their M-Pesa Account by the Authorized User pursuant to the authorization granted under these terms & conditions.

5.8. The Authorized User shall:

5.8.1. Cooperate fully with Safaricom in the investigation of any suspicious or disputed activity;

5.8.2. Provide accurate and complete information when requested; and

5.8.3. Act with integrity in all dealings involving the account and its related services.

5.9. Safaricom reserves the right (but shall not be obliged), at its sole discretion and without prior notice, to

suspend or revoke an Authorized User's access in the event of suspected misuse, breach of terms, non-compliance with policies, or if required by law or regulatory directive.

5.10. The Account Holder assumes full responsibility and risk for any access or transaction made by an Authorized User, and agrees to indemnify and hold harmless Safaricom, its directors, employees, agents, and affiliates against any resulting claims, liabilities, or damages from the Authorized User's actions or omissions.

6. CHARGES

6.1. The Account Holder shall be charged a service fee of KES. 35.00 at the time of set up of the Authorized User and a renewal fee of an equivalent amount monthly thereafter.

6.2. The Account Holder shall be responsible for the relevant transaction charges ordinarily charged for M-PESA services.

6.3. You are responsible for the payment of all applicable fees. All fees are deducted at source and are subject to change at any time at Safaricom's sole discretion subject to approval by the Central Bank of Kenya.

6.4. We reserve the right to vary the applicable charges, subject to the required regulatory approvals.

6.5. We reserve the right to levy charges for use of the Service subject to the relevant legal and regulatory approvals.

7. SUSPENSION

7.1. Safaricom reserves the right, at its sole discretion and without prior notice, to temporarily or permanently suspend, restrict, or disable access to any part of the M-PESA Shiriki Service for any User, including Account Holders and Authorized Users, in any of the following circumstances:

7.1.1. where Safaricom needs to investigate a transaction or series of transactions that is or are suspicious or fraudulent;

7.1.2. where continuing to offer the M-PESA Shiriki Service will render Safaricom non-compliant with any law, regulation or directive from a competent regulatory authority;

7.1.3. for strategic commercial reasons;

7.1.4. If there is any actual or suspected breach of these Terms and Conditions, applicable laws, regulations, or third-party rights;

7.1.5. If Safaricom reasonably suspects fraudulent activity, misuse, or unauthorized access to any M-PESA Account;

7.1.6. Where it is necessary to protect the integrity, security, or functionality of the M-PESA System, its infrastructure, or other users' accounts.

7.1.7. If required by law, regulation, court order, or instruction from a regulatory authority, enforcement agency, or financial institution;

7.1.8. in the event of incomplete, inaccurate, expired, or unverifiable KYC/identity information, or where required documents are not provided;

7.1.9. For maintenance, upgrades, security audits, bug fixes, or unexpected system outages;

7.1.10. Upon instruction or request from the Account Holder to suspend or freeze their account or any

associated services, where technically possible; and/or

7.1.11. in accordance with internal policies related to dormant, inactive, or abandoned accounts.

7.2. Where practicable, Safaricom will make reasonable efforts to notify the Customer of the reason for suspension and any remedial actions required to restore access. However, Safaricom is under no obligation to provide prior notice in cases involving security threats, legal obligations, fraud, or urgent operational needs.

7.3. During the period of suspension:

7.3.1. Users may be unable to initiate or receive payments, access account balances, or use associated features;

7.3.2. Any pending or scheduled transactions may be delayed, reversed, or canceled; and/or

7.3.3. Linked services may be disabled.

7.4. Suspension does not affect Safaricom's right to recover any amounts owed, investigate suspected activity, or take further legal or compliance actions.

7.5. Safaricom shall not be liable for any direct, indirect, incidental, special, or consequential loss or damage arising from or related to the suspension or restriction of services, including (but not limited to) loss of business, revenue, data, access, or goodwill, regardless of whether such suspension was with or without notice.

7.6. Access to services may be reinstated at Safaricom's sole discretion upon satisfactory resolution of the issue(s) that led to the suspension. Reinstatement may be subject to verification steps, submission of additional documentation, or acceptance of revised terms.

8. OPTING OUT

You may opt out of the M-PESA Shiriki service by (i) stopping to use the Service or (ii) where available, clicking on the opt out option on the Access Channels.

9. INTELLECTUAL PROPERTY RIGHTS

All Intellectual Property Rights in the M-PESA Service and the M-PESA Shiriki including the M-PESA trademark are the property of Safaricom and/or its partners and/or affiliates. Any unauthorized reproduction, modification, distribution or republication of M-PESA materials or intellectual property, without the express prior written consent of Safaricom and/or its affiliates is strictly prohibited.

10. CONFIDENTIALITY

10.1. Each party warrants that it will treat in confidence all Confidential Information which it acquires as a result of the operation of these Terms and Conditions and to afford it the same protection afforded to its own Confidential Information.

10.2. Neither party will reveal any Confidential Information to any third party (including public statements) without the written consent of the disclosing party, except where such information is already in the public domain, has been legally acquired by the third party, or where disclosure of the confidential information is ordered by a court or other competent authority.

10.3. Safaricom may disclose the Customer's Confidential Information if required to do so by law or in the good faith belief that such preservation or disclosure is reasonably necessary to: (a) comply with regulatory requirements (b) legal process; (c) enforce the terms of these Terms and Conditions; (d) respond to claims that the Customer's use of the M-PESA Service violates the rights of third-parties; or

(e) protect the rights, property, or personal safety of Safaricom, its subscribers and the public. Where such information is required for any of the purposes above, the Customer shall provide such assistance as may be reasonably required by Safaricom to ensure compliance.

11. WARRANTIES, INDEMNITIES & LIMITATION OF LIABILITY

11.1. Safaricom shall use all reasonable efforts to ensure that all transaction requests are processed in a timely manner. However, Safaricom makes no representations or warranties as to continuous, uninterrupted or secure access to the Service, which may be affected by factors outside Safaricom's control, or may be subject to periodic testing, repair, maintenance or upgrades.

11.2. The limit of Safaricom's liability shall not exceed the maximum M-PESA Account balance limit for the time being in force for any single event or series of events.

11.3. Without prejudice to any other provisions of these Terms and Conditions, in no event shall Safaricom, and its subsidiaries, affiliates, officers, directors, agents, partners, suppliers and employees be liable for system downtimes or unavailability or a delay or failure in processing of a transaction whether such downtime, unavailability, delay or failure is attributable to the Shiriki platform, the M-PESA System or any platforms and software used in delivering the Service.

11.4. In no event shall Safaricom be liable for any lost revenue, profit, or data, or for special, indirect, consequential, incidental, or punitive damages provided that nothing in this clause shall limit or exclude the Customer's right to seek recovery for direct losses actually incurred as a result of Safaricom's wilful default.

11.5. FURTHER TO THE FOREGOING, SAFARICOM SHALL NOT BE LIABLE TO THE CUSTOMER OR ANY OTHER PERSON for (or where):

11.5.1. ANY ACTIONS, OMISSIONS, ERRORS, OR UNAUTHORIZED TRANSACTIONS PERFORMED BY THE AUTHORIZED USER;

11.5.2. THE ACCOUNT HOLDER'S FAILURE TO PROVIDE ACCURATE, COMPLETE, OR UPDATED INFORMATION REGARDING THE AUTHORIZED USER;

11.5.3. MISUSE OF THE M-PESA ACCOUNT RESULTING FROM COMPROMISED LOGIN CREDENTIALS OR ACCESS DEVICES UNDER THE AUTHORIZED USER'S CONTROL;

11.5.4. THE ACCOUNT HOLDER'S DELAY OR FAILURE TO REVOKE ACCESS OF AN AUTHORIZED USER NO LONGER AUTHORIZED;

11.5.5. ANY MISUNDERSTANDING, MISCOMMUNICATION, OR INTERNAL DISPUTE BETWEEN THE ACCOUNT HOLDER AND THE AUTHORIZED USER;

11.5.6. DELAYS, FAILURES, OR INTERRUPTIONS IN SERVICES CAUSED BY SYSTEM ERRORS, THIRD-PARTY SERVICE PROVIDERS, FORCE MAJEURE EVENTS, OR TECHNICAL LIMITATIONS OUTSIDE SAFARICOM'S REASONABLE CONTROL.

11.5.7. THE TRANSACTION AMOUNT SOUGHT BY THE AUTHORIZED USER IS BELOW THE MINIMUM OR ABOVE THE MAXIMUM LIMITS AS COMMUNICATED BY SAFARICOM FROM TIME TO TIME;

11.5.8. THE CUSTOMER HAS ENTERED INCORRECT DETAILS AND THE PAYMENT IS MADE TO THE WRONG RECIPIENT;

11.5.9. THE CUSTOMER'S HARDWARE, SOFTWARE OR INTERNET PROVIDER'S SERVICE IS DYSFUNCTIONAL OR OTHERWISE MALFUNCTIONS;

11.5.10. THE TRANSACTION IS SUSPICIOUS OR FRAUDULENT RESULTING IN LOSSES TO A THIRD PARTY;

11.5.11. THE TRANSACTION DETAILS RECEIVED ARE INCORRECT;

11.5.12. THE AUTHORIZED USER'S RECEIPT OF FUNDS IS INTERCEPTED BY LEGAL PROCESS OR OTHER ENCUMBRANCE RESTRICTING THE TRANSFER; OR

11.5.13. UNFORESEEN CIRCUMSTANCES PREVENT THE EXECUTION OF A TRANSACTION DESPITE ANY REASONABLE PRECAUTIONS TAKEN BY SAFARICOM.

11.6. To the maximum extent permitted by law, [Fintech App Name], its directors, officers, employees, affiliates, partners, or licensors shall not be liable for any direct, indirect, incidental, special, exemplary, punitive, or consequential damages, including but not limited to loss of profits, data, goodwill, revenue, or business interruption, arising from or related to:

11.6.1. The use of, inability to use, or suspension of any part of the services;

11.6.2. Delays, errors, interruptions, or failures in payment processing or service delivery;

11.6.3. Unauthorized access to, or alteration of, User data or transaction history;

11.6.4. Errors or omissions in user-provided information, including Authorized User details;

11.6.5. Any third-party services or integrations used in conjunction with the platform;

11.6.6. Actions taken in good faith to comply with legal, regulatory, or compliance obligations;

11.6.7. Cyberattacks, malware, force majeure events, or system outages.

11.7. Each party shall indemnify the other, and keep each other indemnified, from and against any and all loss, damage or liability, costs and expenses (including legal expenses) howsoever arising and incurred by the other party resulting from (i) any breach of these Terms and Conditions; or (ii) any third party claim in respect of any matter arising from any person's conduct, provided that the liability has not been incurred directly through any default either party in relation to these Terms and Conditions.

11.8. Each party undertakes to indemnify the other party and keep the other party indemnified on demand for and against all proceedings, costs, claims, damages, expenses and liabilities of whatsoever nature howsoever suffered or incurred arising out of or by reason of any infringement or alleged infringement of any Intellectual Property Rights arising as a result of carrying out their obligations under these Terms and Conditions.

12. WAIVER

No delay or omission by either party to exercise any right or power it has under these Terms and Conditions shall impair or be construed as a waiver of such right or power. A waiver by any party of any breach or covenant shall not be construed to be a waiver of any succeeding breach or any other covenant. All waivers must be in writing and signed by the party waiving its rights.

13. SEVERABILITY

Any provision of these Terms and Conditions held by a court of competent jurisdiction to be contrary to any law shall be severed from the agreement, but such severance shall not render the remaining provisions of this agreement ineffective. The remaining provisions of these Terms and Conditions will remain in full force and effect.

14. FORCE MAJEURE

Notwithstanding any provision contained in these Terms and Conditions, neither party shall be liable to the other to the extent fulfilment or performance of any terms or provisions of these Terms and Conditions is delayed or prevented by revolution or other civil disorders; wars; acts of enemies; strikes; lack of available resources from persons other than parties to these Terms and Conditions; labour disputes; electrical equipment or availability failure; fires; floods; acts of God; government or regulator action; or, without limiting the foregoing, any other causes not within its control, and which by the exercise of reasonable diligence it is unable to prevent, whether of the class of causes hereinbefore enumerated or not. If any force majeure event occurs, the affected party will give prompt written notice to the other party and will use commercially reasonable efforts to minimize the impact of such event.

15. GENERAL

15.1. The Parties shall comply with all legal requirements applicable to their role in effecting Transactions.

15.2. These Terms and Conditions may be accepted electronically in accordance with the provisions of the Kenya Information and Communications Act or any other applicable law.

16. WARRANTIES

16.1. Users expressly acknowledge and agree that they use the M-Shiriki Service and its services at their own risk, and that the services are provided on an "as-is" and "as-available" basis without warranties of any kind, express or implied. Safaricom does not warrant that all functionalities for the M-PESA Shiriki shall be available at all times and may withdraw any functionality or the M-PESA Shiriki in general as a direct result of new or amended legislation, statutory instrument, Government regulations or policy or any other commercial reason.

16.2. In the event that we decide to withdraw any functionality of the M-PESA Shiriki or the M-PESA Shiriki Service in general for the reasons set out in this clause, we will notify you of our intention to make the withdrawal at least seven (7) days prior to the withdrawal.

17. GOVERNING LAW.

These Terms and Conditions are governed by Kenyan law.

18. PRIVACY AND DATA PROTECTION

18.1. We are committed to respecting and protecting the privacy of the information we collect from you. Our privacy statement, as updated from time to time, explains how we treat your personal information, who we share your information with, and measures taken to protect your privacy when you use our Service. This can be found on the Safaricom Data Privacy Statement found on our website. If unable to access the link or our website, please reach us on any of our customer care channels to receive a copy.

18.2. Safaricom and the Customer agree to comply with all applicable data protection laws, as well as the Safaricom Data Privacy Statement published on our website and.

18.3. Without prejudice to the generality of the foregoing, Safaricom and the Customer shall comply with the applicable and prevailing data protection safeguards and legislation that protects customers' personal information and personal data from unauthorised disclosure.

18.4. You consent to the disclosure of personal information as enumerated hereunder by Safaricom to Mpesa Shiriki for the purpose of enabling you to enjoy the Service. Your obtained personal information will include your full name, passport/National ID number and your mobile telephone number.

18.5. You authorize Safaricom to verify the information you have provided on your identity through any source which Safaricom may in its sole discretion decide to use.

18.6. You hereby authorize Safaricom to verify the information you have provided on your identity by

obtaining and procuring your personal information contained in the IPRS and you further agree and consent to the disclosure and provision of such personal information by the Government of Kenya to Safaricom.

18.7. You hereby irrevocably authorize Safaricom to disclose, receive, record or utilize any or all your personal information or information or data relating to your use of the Service:

18.7.1. to and from any local or international law enforcement or competent regulatory or governmental agencies so as to assist in the prevention, detection, investigation or prosecution of criminal activities or fraud;

18.7.2. to and from their service providers, dealers, agents or any other company that may be or become their subsidiary or holding company for reasonable commercial purposes relating to the Service;

18.7.3. for reasonable commercial purposes connected to your use of the Service, such as marketing and research related activities;

18.7.4. in business practices including but not limited to quality control, training and ensuring effective systems operation; and

18.7.5. for any other lawful commercial purpose.

19. DISPUTE RESOLUTION, JURISDICTION AND ARBITRATION

19.1. You may contact the Safaricom Customer Care Center to report any disputes, claims or grievances. Our customer care representatives shall handle the report in accordance with our standard complaint handling procedures (the "**Complaints Procedure**").

19.2. Complaints shall be made by calling or SMS 100 for prepaid, 200 for postpaid or 234 which is for MPESA support. Alternatively, you can visit any Safaricom shop or access the Self-service using code 456.

19.3. We, on receiving a complaint, shall provide the complainant with a prompt written acknowledgement within forty eight (48) hours and resolve the complaint in seven (7) working days. For complaints not resolved within seven (7) working days, written updates will be forwarded to the customer periodically.

19.4. Any dispute arising out of or in connection with this Agreement that is not resolved through the Complaints Procedure within thirty (30) days may be resolved for determination by the relevant Kenyan court with competent jurisdiction.